

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 14
JUDICIAL OFFICER: KIRK ATHANASIOU
HEARING DATE: 07/07/2026

For matters where an appearance is required, the parties should appear by Zoom unless told to appear by another method. For all other matters, if argument is requested appearances may be in person or by Zoom.

Please email Dept14@contracosta.courts.ca.gov and opposing counsel by 4:00 p.m. if oral argument is requested, the requesting party shall specify the issues to be argued.

Zoom hearing information

<https://contracosta-courts-ca.zoomgov.com/j/16103009385?pwd=TjFZRDBnNkVQRlV0Znhvai9qT05tZz09#success>

Courtroom Clerk's Session

1. 9:00 AM CASE NUMBER: L25-04442

CASE NAME: CAPITAL ONE N.A. VS. JAY POOVAKAN

MOTION HEARING/ MINUTE ORDER

FILED BY: CAPITAL ONE N.A.

TENTATIVE RULING:

Plaintiff filed a Motion to Vacate Dismissal and Enter Judgment. They filed an initial Motion, followed by an Amended Motion. Both were scheduled for hearing on 4/14/26.

The Defendant has not filed a Response.

On 4/14/26, this court found that Plaintiff failed to properly notice Defendant of the Motion and hearing, and continued the matter to 7/7/26. This court also ordered Plaintiff to serve Defendant with notice of the Motion, as well with notice of the new hearing.

As of this writing, Plaintiff has not filed any proof reflecting that they have noticed Defendant, either of the Motion, or of the hearing.

Disposition

This will be dropped.

Law & Motion

2. 9:00 AM CASE NUMBER: L22-04445
CASE NAME: GALT ADVOCACY, LLC VS. KENDRA SULLIVAN
MTN TO SET ASIDE JUDGMENT FILED BY DEF. ON 04/01/2026
FILED BY: SULLIVAN, KENDRA
***TENTATIVE RULING**

Defendant has filed a Motion to Set Aside Judgment. The Motion is unopposed, however, there is no evidence to suggest that Defendant served Plaintiff with notice of the Motion of the hearing.

Disposition

This Motion will be continued to 9/6/26, 9am.

Court will draw Order.

Defendant to notify Plaintiff of Motion and hearing.

3. 9:00 AM CASE NUMBER: L23-00923
CASE NAME: CREDITORS ADJUSTMENT BUREAU, INC. VS. DOUGLAS FATANI
MOTION FOR ORD ATTACH THE SPOUSAL WAGE EARNINGS & OTHER ASSETS OF EVA I. AHOKOVI
FILED BY PLTF. ON 03/25/2026
FILED BY:
TENTATIVE RULING:

Plaintiff has filed a Motion to attach to the spousal earning of Eva Aholkovi.

The Motion is unopposed.

Plaintiff mailed notice of the Motion and hearing to an address for Defendant and Ms. Aholkovi at an address where Defendant was personally served with process.

Background

On 11/14/23, Notice of Entry of Judgment was filed in Contra Costa County, reflecting a money judgment after default against Defendant.

Plaintiff, in the exhibits to their Motion, provided evidence that Ms. Aholkovi is the spouse of Defendant. Exhibit One reflected an auto loan application in which both Defendant and Ms. Aholkovi applied as co-applicants and listed the same residential address and indicated they were the homeowner. Exhibit Two reflects an online search indicating that the two parties are married.

Analysis

Section 910 of the Family Code renders the community estate liable for the debt incurred by a spouse during marriage. Section 695.020 of the Code of Civil Procedure merely reinforces that this principle is applicable in civil matters, stating that "Community property is subject to enforcement of a money